

of) evidence. The board also remarked that, while a distinction was sometimes made in the case law between an "argument" and a "line of argument", it could see no legal basis in the EPC for treating an isolated argument differently from a set of arguments.

In T 2053/13 the appellant's (opponent's) inventive step assessment starting from the teaching of document D3 was first presented on the day of the oral proceedings before the opposition division. Document D3 itself had been filed with the notice of opposition; it was however not presented as the closest prior art, but mentioned only in a footnote for a marginal issue. The board recalled that according to G 4/92 (OJ 1994, 149), arguments are reasons based on facts and evidence which have already been put forward. The board considered that rather than merely presenting an additional argument in support of a chain of reasoning already known in an established factual context, the appellant had changed its case. The submission in question introduced a whole new chain of reasoning based on the allegation that document D3 was a promising springboard to the invention as claimed. Thus, the appellant's submission related to a new alleged fact. Filing a piece of evidence did not mean that any alleged fact or objection potentially derivable from that evidence was also introduced into the proceedings.

In T 1875/15, which concerned the admission of an objection under Art. 100(c) EPC raised for the first time during oral proceedings before the board, the board endorsed the finding in T 1914/12 that a board has in principle no discretion not to admit late-filed arguments. However, it also noted that if a late-filed objection included new allegations of fact, the board had discretion under Art. 114(2) EPC not to admit it into the proceedings (see also J 14/19; for more details see chapter V.A.4.2.2l to n)).

4.6.2 No legal basis for disregarding late-filed arguments in opposition proceedings

According to the case law of the boards of appeal, Art. 114(2) EPC provides no legal basis for disregarding late-filed arguments. Art. 114(2) EPC refers to late-filed facts and evidence ("Tatsachen und Beweismittel" in German; "faits et preuves" in French), but not legal submissions and arguments (T 861/93, T 386/01, T 150/09). Late-filed arguments cannot therefore be disregarded on the grounds that they were submitted for the first time at the oral proceedings (T 92/92, T 704/06). In T 710/15 the board confirmed that Art. 114(2) EPC was not a basis for disregarding arguments not submitted in due time. For the admission of new arguments before the boards of appeal, see also T 1914/12 citing and disagreeing with T 1069/08 and T 1621/09, and chapter V.A.4.2.2l to n).

In T 92/92 the board held that the EPC in the English version made a clear distinction between "facts and evidence" on the one hand and "arguments" on the other in Art. 114(1) EPC 1973 and that Art. 114(2) EPC 1973 did not refer to arguments. Art. 114(2) EPC 1973 was to be interpreted such that the parties' right to argue their case was not unduly restricted.

Under R. 71a EPC 1973 (R. 116 EPC) new facts and evidence do not need to be considered after the time stated in the summons, unless they are admitted on the grounds that the subject of the proceedings has changed. R. 71a EPC 1973, and Art. 114(2) EPC 1973 on which it is based, refer to late-filed facts and evidence but not to

new arguments, which can be made at any stage in the proceedings. In accordance with the jurisprudence, therefore, new arguments in support of facts already adduced have to be considered in accordance with R. 71a(1) EPC 1973, even if presented after the date specified in the summons, and equally cannot be rejected by citing Art. 114(2) EPC 1973 (T 131/01, OJ 2003, 115; T 926/07, T 1553/07).

In T 2238/15 too, the board (citing T 92/92) endorsed the view that the EPC distinguished clearly between "facts and evidence" and "arguments" and provided no basis for refusing to admit late-filed arguments. The discretion under Art. 114(2) EPC to disregard late-filed facts and evidence therefore did not extend to arguments, and that applied equally to new arguments not submitted until after the date fixed in the summons to oral proceedings (see R. 116 EPC).

5. Amendments to claims, description and drawings in opposition proceedings

5.1. Admissibility of amendments

5.1.1 Principles

The extent to which amendments may be admissible in opposition proceedings was discussed in T 1149/97 (OJ 2000, 259). Once a decision to grant has been issued, the European examination procedure is closed and its results become binding on the applicant and the EPO in that no further amendments may be made. However, if an opposition is filed, the patent in suit may be amended. Such amendments are not left to the general discretion of the patent proprietor, since opposition proceedings are not a continuation of the examination proceedings (G 1/84, OJ 1985, 299). However, the patent proprietor may, pursuant to R. 80 EPC (R. 57a EPC 1973) – without prejudice to R. 138 EPC (R. 87 EPC 1973) – react to the opponent's objections by amending the description, claims and drawings, provided that the amendments are **occasioned by the grounds for opposition** specified in Art. 100 EPC, even if the respective ground has not been invoked by the opponent (see also in this chapter IV.C.5.1.2). In addition, amendments occasioned by national rights of earlier date are admissible pursuant to R. 138 EPC (see also in this chapter IV.C.5.1.3).

According to the board in T 1149/97, those regulations could be seen to reflect the formal aspects of a procedural cut-off effect associated with the grant of a patent in the opposition phase. The grant of a patent did not constitute a general cut-off point in that the patent had to be defended in unamended form. However, only amendments as reactions to actual or possible grounds of opposition or to conflicting earlier national rights were admissible (R. 80 and 138 EPC). Possible substantive cut-off effects for amendments after grant could, in the board's view, only be based on Art. 123(3) EPC (see also chapter II.E.2.3.2).

Since the EPC does not provide for surrender of the patent in opposition proceedings, patent proprietors can merely request that the patent be amended. In requesting that the patent be maintained in a limited form, a patent proprietor is merely attempting to delimit it against objections raised by the EPO or the opponents, and **does not**, by virtue of such

limitation, **irrevocably surrender subject-matter** not covered by the request as limited. In principle, the patent proprietor is free to withdraw such a request at any time during opposition proceedings or to amend it subsequently and, in particular, to resume a defence of the patent as granted, unless this would constitute an abuse of procedural law or the proprietor is prevented from doing so by the prohibition of reformatio in peius (see e.g. T 123/85, OJ 1989, 336; T 296/87, OJ 1990, 195; T 445/97; T 473/99; T 699/00; T 880/01; T 794/02; T 934/02; T 1018/02; T 1213/05; T 1394/05; T 1150/11; T 385/15 and T 43/16, which refer to this principle as established case law).

Unlike R 137(3) EPC (R 86(3) EPC 1973), R 80 EPC (R 57a EPC 1973) does not specify the point in time up to which the proprietor may amend the description, claims and drawings under the requirements specified in this provision. The boards had from the beginning based their decisions on the principle that the proprietor has no right to have amendments admitted at any stage of opposition proceedings and this did not change by the introduction of R 57a EPC 1973. The discretion of the opposition division with regard to late-filed amendments was however derived from different provisions of the EPC (including R 116(2) and Art. 114(2) EPC). In R 6/19 the Enlarged Board of Appeal held that Art. 123(1) EPC is the basis for the EPO's discretion whether or not to admit claim requests in opposition proceedings (see also T 966/17, which cited Art. 123(1), first sentence, EPC, read together with R 79(1) and 81(3) EPC, and T 256/19, which referred to R 6/19 and T 966/17 and cited Art. 123(1) EPC in conjunction with R 79(1) and/or 81(3) EPC and, in the case of arranged oral proceedings, with R 116(2) EPC). In T 754/16 the board emphasised that for the opposition division to have discretion not to admit new requests, these had to be late filed in the first place. For details regarding the late submission of amendments in opposition proceedings, see in this chapter IV.C.5.1.4.

In T 966/17 the board made it clear that parties to adversarial proceedings were not entitled to "detailed guidance" from the decision-making department on how to overcome a deficiency at issue. Instead it was incumbent on each party to react adequately to the submissions of the opposing party.

In G 1/10 (OJ 2013, 194), the Enlarged Board of Appeal held that R 140 EPC is not available for correcting patents, including during opposition or limitation proceedings. However, it is always open to a patent proprietor to seek to amend his patent during opposition or limitation proceedings and such an amendment could remove a perceived error. Such an amendment would have to satisfy all the legal requirements for amendments including those of Art. 123 EPC (see also full summary of G 1/10 in chapter III.L.2.1.; but see also T 657/11, summarised in chapter IV.C.5.1.8).

5.1.2 Amendments occasioned by a ground for opposition – Rule 80 EPC

a) General

Pursuant to R 80 EPC (R 57a EPC 1973) the claims of a granted patent may be amended, provided that the amendments are occasioned by a ground for opposition under Art. 100 EPC, even if that ground has not been invoked by the opponent. Prior to the introduction of R 57a EPC 1973 (entry into force on 1 June 1995, see decision of the

Administrative Council, OJ 1995, 9), it had already been clarified in the case law that the EPC did not guarantee a patent proprietor the right to have proposed amendments admitted in opposition (appeal) proceedings. Whether to allow such amendments was to be decided by the department concerned exercising due discretion. Amendments could be refused if they were neither appropriate nor necessary (see e.g. T 406/86, OJ 1989, 302). For later decisions referring to these criteria within the framework of R. 57a EPC 1973 (R. 80 EPC), see e.g. T 17/97, T 313/98, T 994/03, T 263/05, OJ 2008, 329, T 323/05, T 340/10, T 2063/15.

As underlined in T 256/19 with reference to the notes on the introduction of R. 57a EPC (Notice dated 1 June 1995, OJ 1995, 409), R. 80 EPC addresses the purely substantive aspects of the proprietor's entitlement to amend the patent, and does not specify the point in time up to which amendment is allowed (on "Late submission of amendments" and in particular discretion regarding their admittance, see chapter IV.C.5.1.4 below). In the board's view, the wording of R. 80 EPC (in particular "may be amended, provided that") meant that claims may be amended if the amendments are occasioned by an opposition ground; they may not be amended otherwise. The requirement of R. 80 EPC was therefore similar to that of Art. 123(2) EPC (see in particular "may not be amended in such a way that"). Accordingly, the board considered R. 80 EPC to be a **non-discretionary provision** with a substantive requirement that relates to the **allowability** of a patent as amended rather than to admissibility.

According to T 323/05, which concerned a request to adapt the description, R. 57a EPC 1973 (R. 80 EPC) established a limit to the amendments which can be made to the patent in suit. Art. 84 and R. 57a EPC 1973 were the two provisions which have to guide the patent proprietor when invited by the opposition division to adapt the description. In other words, the amendments have to be appropriate and necessary, and nothing more.

In T 750/11 the board observed that amendments under R. 80 EPC were formally admissible so long as they could be regarded as a **serious attempt** to overcome a ground for opposition. So an amendment further limiting the subject-matter of an independent claim complied with R. 80 EPC in formal terms. Whether it actually overcame any ground for opposition was a separate matter to be settled as part of the ensuing substantive examination. A serious attempt was acknowledged in e.g. T 1175/11 and T 1797/16. For a counter-example, see T 1833/15 (in which the amendment did not change the claimed subject-matter and so did not amount to a serious attempt).

In T 993/07 the board recalled that R. 80 EPC is *lex specialis* for amendments during opposition proceedings, analogous to R. 137 EPC for amendments during examination proceedings. The board interpreted the rule to mean that in opposition proceedings the proprietor's right to amend the patent, e.g. the claims as granted, is limited to making amendments in order to overcome an objection based on a ground for opposition as specified in Art. 100 EPC, thereby possibly **avoiding revocation** of the patent (confirmed in T 21/16 and referred to as established case law). In line with this interpretation, the board stated that opposition proceedings were not to be understood as an opportunity for the proprietor to fix any, from his perspective, shortcomings in the patent, such as an insufficient number of independent and/or dependent claims in order to define all

commercially valuable embodiments. The fact that the addition of one or more independent and/or dependent claims may improve the fall-back positions in any future revocation proceedings before a national court was clearly not the scope and purpose of either R. 80 EPC or the opposition procedure (confirmed in T.1764/17). The board also observed that a limitation procedure pursuant to Art. 105a EPC is not subject to the same requirement as set out in R. 80 EPC.

In T.359/13 the board stated that R. 80 EPC did not place any restriction on the form of amendments a patent proprietor may (seek to) make to address objections raised (here: reformulating the product claim as a use claim). On the contrary, a patent applicant or proprietor was free to draft proposed amendments to the specification in any manner considered appropriate. Even in the situation considered in G.1/99 where the requirements of the principle of no reformatio in peius imposed restrictions on the manner in which the claims may be amended, an opponent as appellant had no right to prescribe the form of the amendments which the patent proprietor as respondent may make (see T.23/04).

In T.1285/15 the board underlined that the very language of R. 80 EPC ("... occasioned by a ground for opposition ...") made clear that the situation **at the time of the amendment** needed to be considered when compliance with this provision was examined. The fact that, as in the case in hand, the claims were amended again at a later stage and that, as a consequence, the deletion of the sentence was no longer required, did not lead to the conclusion that the amendment of the description retroactively contravened R. 80 EPC. The original amendment could still be said to have been occasioned by a ground for opposition.

In T.946/16 the board found that the opponents' objection was based on a misinterpretation of R. 80 EPC. The amendments referred to in this Rule were not ones made to an earlier version differing from the patent as granted. The result of interpreting R. 80 EPC that way would be incompatible with the spirit and purpose of the EPC. Among other things, it would make it impossible for the patent proprietor ever to overcome a clarity objection to an amendment which was itself in line with R. 80 EPC.

In T.2450/17, paragraph [0008] of the patent specification contained an incorrect reference to the prior art as a result of an amendment during the grant proceedings. At the oral proceedings before the board, the appellant submitted an amended paragraph [0008], from which the inaccurate information had been deleted. As to whether the contested amendments were admissible under R. 80 EPC, the board pointed out that the case law had recognised that references to relevant prior art as defined in R. 42(1)(b) EPC could be added at a later stage without this necessarily being deemed an inadmissible extension of the subject matter of the application. However, such references designed to delimit the relevant prior art should not be incorrect or misleading, otherwise they could indeed alter the subject-matter of the patent. Remedying inaccuracies of this kind thus did not contravene Art. 123(2) EPC; on the contrary, doing so was appropriate and necessary for ensuring compliance with that provision. Deleting incorrect information about the prior art from which the patent specification was to be distinguished was thus appropriate for addressing the ground for opposition under Art. 100(c) EPC. The board also concluded that it was wrong to say that any amendment to an incorrect reference to the prior art